

Anexo 1: Contribución de la DGPPyEE al Informe Nacional de la UNESCO sobre las medidas tomadas para la aplicación de la *Convención relativa a la lucha contra la discriminación en la esfera de la enseñanza*

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply) (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☐ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☐ Access to justice in case of violations of the right to non-discrimination in education
- ☐ Combatting discrimination in terms of curriculum
- ☐ Other:

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals resident in your country*

The Mexican Federal Government's National Development Plan 2019-2024 states the following:

- *"We advocate substantive equality between women and men, the dignity of older adults and the right of young people to have a place in the world; We reject all forms of discrimination based on physical characteristics, social position, education, religion, language, culture, place of origin, political and ideological preference, gender identity, orientation and sexual preference. We advocate for a development model that is respectful of the population and of the habitat, equitable, oriented to correct and not to sharpen inequalities, defender of the cultural diversity and the natural environment, sensitive to the regional and local economic modalities and singularities, and aware of the needs of the future inhabitants of the country..." (Gobierno Federal 2019).*

The previous paragraph refers to all government actions targeting development, not limited to education. Nevertheless, one of the first actions promoted by this administration was to propose an Educational Constitutional Reform, approved by Congress in 2019; some of the main amendments concerning non-discrimination and equal opportunities in education are as follow:

- *"The State will prioritize the best interests of children, adolescents and youth in access, permanence and participation in educational services" (Art 3).*
- *"Education will be based on the unrestricted respect for the dignity of people, with a focus on human rights and substantive equality. It will tend to develop harmoniously all the faculties of the human being" (Art 3).*
- *Regarding Early Childhood Education: "Initial education is a right of children and it will be the responsibility of the State to raise awareness about its importance" (Art 3).*
- *On Higher Education: "The compulsory nature of higher education corresponds to the State. Federal and local authorities will establish policies to promote inclusion, permanence and continuity, in terms indicated by law. They will also provide means of access to this type of education for people who meet the requirements set forth by public institutions" (Art 3, fraction X).*



The Draft Education Sector Program 2020-2024 (SEP 2020) states that the Mexican Federal Government will spare no efforts or resources to guarantee equal educational opportunities, a situation that, in a country plagued with inequities, implies prioritizing the poor as well as fighting against all forms of discrimination. The two first objectives of the Draft Sector Program state the importance of non-discrimination and equal opportunities in education; we also quote some of the priority strategies to exemplify:

Objective 1. To guarantee the right of the population in Mexico to an equitable, inclusive, intercultural and integral education focused in the best interests of girls, boys, adolescents and young people.

- **Priority strategy 1.2:** Promote measures to favor the entry and permanence in the educational system of girls, boys, adolescents and young people from historically discriminated groups, which encourage the timely conclusion of their studies and allow the development of complete educational trajectories.
- **Priority strategy 1.4:** Ensure equity conditions for all, with particular emphasis on historically discriminated groups and populations.

Objective 2. To guarantee the right of the population in Mexico to an education of excellence, relevant in the different types, levels and modalities of the National Educational System.

Priority strategy 2.4: Consolidate school accompaniment and coexistence schemes aimed at reducing school dropout and improving terminal efficiency, favoring the transition between the types, levels and modalities of the National Education System





1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☐ Constitutional laws and/or legislation guarantee equal access to education
- ☐ Regulations ensure equal access to all levels and types of education
- ☒ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b

In order to guarantee equal access to all educational levels, the Mexican Federal Government promotes the *Becas para el Bienestar Benito Juárez* (Benito Juarez Wellbeing Scholarships). As an overarching goal, it comprises four government's priority programs that seek to guarantee the right to education of children, adolescents and young people with limited economic resources so that they can enroll, stay and conclude their studies through cash transfers:

- Becas de Educación Básica para el Bienestar Benito Juárez (Benito Juarez Wellbeing Basic Education Scholarships)
- Beca Universal para Estudiantes de Educación Media Superior Benito Juárez (Benito Juarez Upper-Secondary Universal Scholarship)
- Becas Elisa Acuña (Elisa Acuña Scholarships)
- Beca Jóvenes Escribiendo el Futuro (Youth Writing The Future)

The *Benito Juarez Wellbeing Basic Education Scholarships* consists of 800 monthly pesos delivered bimonthly per family (1,600 bimonthly pesos), during the ten months of the school year. The target is families in poverty and with members (under 15 years) who study in initial, preschool, primary or secondary education. Similarly, the *Benito Juarez Upper-Secondary Universal Scholarships* supports youth financially. The program's only condition is that the recipients are students who attend Upper-Secondary Education in public institutions of schooling modality. The various modalities of the *Elisa Acuña Scholarships* accompany the academic trajectory of students from the moment they enter upper-secondary until they complete their Higher Education, considering complementary support for social service, qualification, national and international mobility, training and professional practices, including the professionalization of teachers and academics. *Youth Writing The Future* targets students in a condition of poverty or vulnerability, living in areas with high rates of violence, as well as students of indigenous origin and Afro-descendants, who are enrolled in a priority institution of Higher Education.

La Escuela Es Nuestra (The School Is Ours) is a social program designed to assign subsidies to improve the conditions of the infrastructure and equipment of public schools. It prioritizes those located in areas of very high and high marginalization and localities of indigenous population, by delivering direct economic subsidies to school communities for maintenance, rehabilitation, equipment, teaching material, and / or construction of educational facilities, in order to improve the conditions of the public educational service, with the participation of school communities.

The *Programa Atención a la Diversidad de la Educación Indígena* (Attention to Diversity of Indigenous Education Program) intends that the students who attend indigenous education schools have greater possibilities of completing compulsory basic education. It aims to do so by channeling resources to promote: a) attention to linguistic diversity in indigenous education schools, b) strategies for supporting multigrade group care, c) actions to strengthen the contextualization of the curriculum approach, and d) teacher training in the use of contextualized educational materials (DOF 2019).



The *Programa Atención Educativa de la Población Escolar Migrante* (Educational Attention Program for the Migrant School Population) supports students who attend migrant education centers to increase their possibilities of completing compulsory basic education. The strategy consists on channeling resources to ensure that basic education has an educational offer according to their needs, in order to achieve greater inclusion in the educational system and equity in the care provided, seeking to generate an increase in the coverage of the migrant population (DOF 2019).

The *Programa Fortalecimiento de los Servicios de Educación Especial* (Strengthening of Special Education Services Program) aims at improving the operating conditions, organization, equipment, and accessibility of basic education schools and special education services. It also contemplates the professionalization of technical advisers, management and teaching staff, and the participation of families who have children with disabilities and / or outstanding skills, in an informed and organized way, to generate inclusive schools and thereby identify and serve a greater number of students who require significant support (DOF 2019).

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

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| ☒ Providing financial incentives and fellowships | ☐ Providing auxiliary assistance |
| ☒ Providing positive or affirmative action measures | ☒ Adapting education infrastructure |
| ☐ Ensuring inclusion in mainstream schools for all learners | ☐ Adapting curricula and methods |
| ☐ Training teachers on inclusive education | ☐ Providing language classes to newcomers (e.g. refugees) |
| ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ☐ Eliminating administrative barriers to education |
| ☒ Providing re-entry programmes for young mothers | ☒ Providing flexible learning pathways |
| ☒ Eliminating all barriers for pregnant girls or young mothers in education | ☐ Valuing diversity in schools |
| ☐ Other: | ☐ Combatting stereotyping and stigmatisation |

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

The *Beca de Apoyo a la Educación Básica de Madres Jóvenes y Jóvenes Embarazadas* (Scholarship to Support Young Mothers and Pregnant Youth) helps ensure greater coverage, inclusion and educational equity by granting scholarships to girls and young women in a context of vulnerability. The program, which belongs to the Elisa Acuña Scholarships, targets women aggravated by pregnancy and/or early motherhood in order to promote access, permanence and conclusion of basic education to consolidate a Mexico with quality education (DOF 2019).





The Draft Education Sector Program 2020-2024 (SEP 2020) emphasizes on gender equality and empowerment of women objectives, such as the following:

- Promote teacher training with a gender perspective, respect for human rights and for the culture of peace and nonviolence.
- Promote the certification of skills to strengthen the employability of women.
- Promote affirmative actions such as vocational guidance in undergraduate and graduate degrees for the integration of women in careers in areas of science, technology, engineering and mathematics
- Update the plans and programs of study in order to offer a comprehensive education with a gender perspective that includes, among other fields, health, sports, literature, art, music and socio-emotional development.
- Create more flexible and relevant study plans and programs, with special attention to the ethnic, cultural and linguistic diversity of the country, as well as with a gender perspective.
- Promote creative workshops for girls and boys in areas related to science, technology, engineering, mathematics and robotics.
- Promote actions that promote values such as tolerance and solidarity to create a healthy and violence-free environment.
- Promote the application of prevention mechanisms and protocols for the detection and reporting of school violence, as well as the recording of incidents that occur at school.
- Update the regulatory support and advice framework that guarantees the retention of teenage mothers and pregnant students

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☒ No ☐

Please provide reference to the relevant laws and provisions:

Mexico has a federal system composed of 32 federal entities (31 states and Mexico City). Before 2019, marriage was allowed at the age of 16 years for men and 14 years for women at the national level. At the state level, by the beginning of 2016, 18 federal entities had prohibited marriage between or of persons under 18 years of age. Nevertheless, several of them still had exceptions and legal waivers that allowed it.

In 2019, reforms to article 148 of the Federal Civil Code were approved, establishing that in order to get married it is necessary to have reached eighteen years of age. Likewise, the reform repealed the possibility of local (state) and family authorities granting waivers or consent to marry before the age of 18.

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):



☒ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

a) Poverty and inequality

Mexico is a very unequal country, both between regions and among people, in terms of income and social welfare. Families in the highest decile concentrate 62% of income, whilst those in the lowest 0.4%. In 2016, 43.6% of the population lived in conditions of poverty and 7.6% of the population lived under extreme poverty (CONEVAL 2018). The population groups that face the greatest difficulties in accessing education are those that live in small marginalized towns, who come from households with a low educational level, children and young people who work long hours, members of low-income households, who have some type of disability, and children of migrant farmworker families. Despite the expansion of educational services and the high levels of coverage achieved in basic education in the national average (94.6%), about 14.9% of indigenous girls, boys and young people (3 to 17 years of age) do not attend school. Likewise, 31.7% of the population from 3 to 17 years of age with some type of disability is illiterate (SEP 2020). Based on this diagnosis, the present administration has made quality and equity the pillars of the education system, as captured in the first two priority objectives of the Draft Education Sector Program 2020-2024 (see II.1.1).

b) Diversity

Mexico is a culturally diverse country: 10% of the Mexican population is indigenous and 6.5% speak one of the 68 native languages that exist in our territory and its variants. The indigenous population resides in municipalities characterized by high social and economic deficiencies; 87.5% of the municipalities considered indigenous are of high or very high marginalization. The National Commission of Free Textbooks has incorporated the indigenous education section where books from first to sixth grade and books from the digital library are located. Books are produced and distributed in 64 indigenous languages with their respective variants: Huichol, Mazateca, Tlapaneca, Mixtec, Totonaca, among others (CONALITEG 2019).

c) Rurality and marginalization

At the beginning of the 1950s, Mexico was a predominantly rural country, since 58.5% of its population lived in towns with less than 2,500 inhabitants, and barely had ten cities with 100,000 or more inhabitants. Decades later, the country became a predominantly urban one: in 2010, more than 76% of its population lived in towns with more than 2,500 inhabitants (urban), and almost half (47.8%) were distributed in 131 locations of more than 100,000 inhabitants. The Mexican Federal Government tackles this challenge through the National Council for Educational Promotion (CONAFE, in Spanish) in charge of the *Programa Educación Inicial y Básica Comunitaria* (Community Initial and Basic Education Program). CONAFE channels resources to marginalized communities so that they have initial, preschool, primary and secondary education services, including the financing, training and support of educational figures; the delivery of educational materials and school supplies; the carrying out of cultural, sports and community development activities; and the improvement of infrastructure and equipment of the facilities.

☒ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

a) Teacher training

During the last decades, the *Escuelas Normales* (Normal Schools) have suffered a deterioration both in their infrastructure and in their curricula; they face precariousness of facilities, equipment and teaching





materials. In general, its conditions that are not adequate to meet the training needs of normal students and the professional development of their trainers. These circumstances caused a disinterest in the teaching career reflected in the decrease in the enrollment of the Normal Schools, since in a span of ten years they passed from 133 thousand 286 students enrolled in the 2008-2009 school year to 90 thousand 333 in the 2018-2019 school year (SEP 2019). The present administration is developing a national strategy for strengthening Normal Schools, based on: the training of teachers with the knowledge, aptitudes and experience necessary for learning and the integral development of the students, the improvement of infrastructure, the development of their curricular programs, the strengthening of their administration processes and the planning of their entry models (SEP 2019).

b) Teacher salaries

The salary of half of the educators is 50% lower than that of other professionals in Mexico, for elementary school teachers the difference is 20% less. Among male teachers, at all educational levels, the distance with the salary of other male professionals is smaller. The average (net) monthly salary of teachers in indigenous schools is lower than that of their general school peers (INEE 2015).

c) Infrastructure and teaching conditions

The infrastructure is insufficient, since about three out of four students do not attend schools that meet all the necessary conditions to teach: 15% do not register constructions with durable materials; 70% do not have all the basic services, including drinking fountains (40% without considering drinking fountains) and 20% without basic furniture (CONEVAL 2018). According to the Teaching and Learning International Survey (TALIS) 2013:

- In Mexico, almost half of lower secondary teachers (44%) work in schools where 30% or more of the students are from a socio-economically disadvantaged background (TALIS average is 20%).
- More than half of teachers in Mexico work in schools where the school principal reports a shortage of support personnel (60%) and qualified and/or well-performing teachers (56%), compared with the TALIS average of 47% and 39%, respectively.
- Almost a quarter (24%) of teachers in Mexico report not feeling prepared to perform their work (the third largest share of teachers), compared with the TALIS average of 7%.

The 2019 Constitutional Reform laid the foundations to recognize the contribution of teachers, as fundamental agents of the educational process, to the social transformation of the country, as well as the role they play in assuring the quality of educational services. To assist in this situation, this administration promoted the creation of the System for the Career of Teachers, which seeks to:

- a) Prioritize the teachers' work to achieve goals and objectives focused on student learning,
- b) Strengthen their professional development and improvement through education, training and updating,
- c) Promote social respect towards the teaching profession and work; as well as strengthening their leadership in the community,
- d) Recognize their experience, as well as their connection and commitment to the community and the environment where they work, to propose solutions according to each educational context (DOF 2019).

☒ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/ inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)





a) Governance and participation

Centralized decision-making left out the most important actors of the National Education System: children, adolescents and young people, around whom the educational task should revolve (SEP 2020). This government acknowledges that it is necessary to reaffirm the rectory of the State in education policy, without privileging any particular interest over constitutional principles, for which it is necessary to reach agreements with the participation, collaboration and consensus of all sectors and groups of society; including but not limited to teachers, parents and civil society (*Ibid*). The 2019 Constitutional Reform laid the foundations to recognize the State's role in education:

- *"Rectory of education corresponds to the State, the one given by the latter, in addition to compulsory, will be universal, inclusive, public, free and secular" (Art 3).*

b) Teachers' unions

SNTE, the National Teachers' Union, has more than 1.5 million members. For decades, this group has played an active role in the evolution of the education system and policies. The current government works towards building collaborative relationships with teachers in general and specifically with the various educational actors to achieve the purposes of education established by our Constitution.

c) Federal arrangement

The separation of power and distribution of resources between the three levels of government (federal, state and municipal) is complex and important regional disparities remain. The gap between the states regarding access to basic education exceeds 25 percentage points. At the national level, 31.2% of young people and adults are in educational lag, while Chiapas (47.9%), Oaxaca (45.4%) and Michoacán (44.2%) register the highest levels. This government seeks to establish agreements to reduce coverage and quality gaps between the various regions and federal entities of the country (SEP 2020), with a focus on the development of states in the south-southeast. The federal budget prioritizes the use of public spending towards social programs in order to reduce economic, social and regional inequalities in Mexico (Gobierno Federal 2019).

☐ Other:

1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

The Mexican Federal Government has a constitutional fixed term of 6 years. Due to political cycles, the current administration (2018-2024) is in the planning and implementation stage of policies, strategies and programmes developed to tackle the various challenges identified in order to "ensure an inclusive and equitable quality education and promote lifelong learning opportunities for all" (SDG 4). The assessment stage will follow in due time and adjustments will be introduced accordingly.

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